

**PLACER COUNTY SUPERIOR COURT
CIVIL LAW AND MOTION TENTATIVE RULINGS
TUESDAY, APRIL 28, 2026**

These are the tentative rulings for civil law and motion matters set at **8:30 a.m. on Tuesday, April 28, 2026**. The tentative ruling will be the court's final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., Monday, April 27, 2026**. Notice of request for oral argument to the court must be made by calling (916) 408-6481. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date, and after approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

Except as otherwise noted, these tentative rulings are issued by the **HONORABLE TRISHA J. HIRASHIMA** and if oral argument is requested, it will be heard at 8:30 a.m. in **Department 42**, located at 10820 Justice Center Drive, Roseville, California 95678.

PLEASE NOTE: REMOTE APPEARANCES ARE STRONGLY ENCOURAGED FOR ALL CIVIL LAW AND MOTION MATTERS. (Local Rule 10.24.) More information is available at the court's website: www.placer.courts.ca.gov.

1. M-CV-0084551 Discover Bank v. Stojkovich, Trisha

Motion for Plaintiff's Application to Change Plaintiff Name Due to Plaintiff Merger

Plaintiff requests to amend its name to Capital One, N.A., as successor by merger to Discover Bank. Defendant has been properly served with the summons and complaint. Judgment was previously entered in favor of plaintiff. The court grants plaintiff's unopposed motion to change plaintiff name due to plaintiff merger. Plaintiff's name is amended to **Capital One, N.A., successor by merger to Discover Bank**.

2. M-CV-0086045 Bank of America v. Fisk, Tracy Michelle

The motion to enforce settlement is dropped from calendar as no moving papers were filed with the court.

3. M-CV-0093785 Ryad, Fatima Zahra v. El Massioui, Ben

Plaintiff's Motion for Reclassification and for Leave to Amend

Plaintiff moves to reclassify from unlawful detainer limited less than \$10,000 to unlimited civil and for leave to amend the first amended complaint. Defendant opposed

the motion on procedural grounds as plaintiff failed to attach a proposed second amended complaint with her motion, in violation of California Rule of Court, Rule 3.1324(a)(1). In response to defendant's opposition, plaintiff submitted her proposed second amended complaint with her reply. The court granted a continuance to permit defendant leave to respond further following review of the proposed second amended complaint. No further response was filed.

Plaintiff's motion to reclassify this action to an unlimited civil case is granted. (Code Civ. Proc., §§ 403.020, 403.040.) Plaintiff shall forthwith submit the required fees to reclassify to an unlimited civil case. (Code Civ. Proc., §§ 403.040 (c)(1), 403.060; Gov. Code, § 70619.) Failure to pay the required fees may result in the case proceeding as a limited civil case or, on notice, dismissal of the action. (Code Civ. Proc., §§ 403.040 (d)(3), 403.060 (b).)

"The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading ..." Code Civ. Proc. § 473 (a)(1). "Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading." Code Civ. Proc. § 576.

Plaintiff's motion for leave to amend the first amended complaint is granted. (Code Civ. Proc., §§ 473, (a)(1), 576.) Plaintiff shall file and serve the second amended complaint **on or before May 8, 2026**.

4. S-CV-0044479 Placer Union H.S. Dist. v. Auburn Renewables

Plaintiff's motion for contract revision and for attorneys' fees and costs is continued to be heard on **May 5, 2026 at 8:30 a.m. in Department 42**. No further briefing is permitted. The court apologizes to the parties for any inconvenience.

5. S-CV-0049847 Sorensen, Sven v. Asher, Raymond

Motion to Enforce Settlement under CCP 664.6

Plaintiffs move the court to enforce terms of the settlement agreement between the parties and for an award of attorneys' fees pursuant to the terms of the agreement. The court previously continued the hearing on this matter to permit plaintiffs the opportunity to respond to additional information set forth in a supplemental response filed by defendant. The court has considered all filings by the parties in relation to the current motion.

Code of Civil Procedure section 664.6, subdivision (a) provides "[i]f parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement." A court ruling on a motion under Code of Civil Procedure section 664.6 may consider the parties'